

IN THE HIGH COURT OF DELHI AT NEW DELHI

WRIT PETITION (CIVIL) NO. 1247 OF 2024

Date of Order: 15th March 2024

IN THE MATTER OF:

Rajesh Kumar Sharma                      ...Petitioner

vs.

Union of India & Ors.                      ...Respondents

CORAM: THE HON'BLE MR. JUSTICE ANIL KUMAR MEHTA

SUBJECT: Non-implementation of Right to Information Act provisions

ORDER

This writ petition has been filed challenging the inaction of the respondents in processing RTI applications filed by the petitioner on 01st January 2024 and 15th January 2024.

After hearing both the parties, this Court is of the view that the respondents have failed to comply with the mandatory timelines prescribed under the Right to Information Act, 2005.

Accordingly, the following directions are issued:

1. The Central Public Information Officer (CPIO) of the Ministry of Home Affairs shall provide complete information sought by the petitioner within 30 days from the date of this order.
2. The Ministry of Home Affairs is directed to conduct an internal inquiry into the delay and submit a compliance report to this Court within 45 days.
3. The Department of Personnel and Training (DoPT) shall issue fresh guidelines to all Ministries regarding timely disposal of RTI applications within 60 days.
4. A penalty of Rs. 25,000/- is imposed on the defaulting CPIO for willful non-compliance, payable within 15 days.

Timeline: Compliance report to be filed before this Court by 30th April 2024.

Next date of hearing: 5th May 2024

Respondents are put to notice. Non-compliance may result in contempt proceedings.

Sd/-

JUSTICE ANIL KUMAR MEHTA

HIGH COURT OF DELHI

Dated: 15th March 2024